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Electronically FILED by
Superior Court of California,
County of Los Angeles
3/22/2024 11:18 AM
David W. Slayton,
Executive Officer/Clerk of Court,
By M. Bell, Deputy Clerk

SUPERIOR COURT OF CALIFORNIA
COUNTY OF LOS ANGELES
CHATSWORTH COURTHOUSE NORTH VALLEY DISTRICT

MIDLAND CREDIT MANAGEMENT, INC.

Plaintiff,

vs.

VICTORIA REYNA;

Defendant.

Case No. 24CHLC00679

**DECLARATION RE:
CODE OF CIVIL PROCEDURE § 1033;
INTEREST; AND
EVIDENCE CODE § 1550**

I, the undersigned, declare and state as follows:

1. I am the attorney of record for plaintiff MIDLAND CREDIT MANAGEMENT, INC. ("Plaintiff") in the above entitled action. To the extent that Plaintiff acts in its capacity as successor in interest to the original creditor or its assigns, references herein to Plaintiff may include Plaintiff's predecessor in interest. If called to testify, I could and would competently testify as to all the facts stated in this declaration, except as to those matters testified to upon information and belief, and as to those matters, I believe them to be true.

2. I am an attorney and an employee of Midland Credit Management, Inc. ("MCM"), the servicer of Plaintiff's account. I have access to and have reviewed the electronic records pertaining to the account and am authorized to make this affidavit on Plaintiff's behalf. The electronic records reviewed consist of data acquired from the seller when Plaintiff purchased the account, together with records generated in connection with servicing the account since the day the account was purchased by Plaintiff. In addition, I reviewed the documents that are attached to this affidavit.

1 3. Plaintiff is precluded from filing this case in Small Claims Court per Code of Civil
2 Procedure § 116.420(a).

3 4. The complaint seeks to recover amounts owed by Defendant VICTORIA REYNA
4 ("Defendant"). The underlying account that is the basis of the instant lawsuit is a credit account that
5 Defendant held with creditor CREDIT ONE BANK, N.A., account number: XXXXXXXXXXXXX-1344
6 (the "Account").

7 5. Prior to filing this complaint, all right, title and interest to the Account was sold and
8 assigned to Plaintiff. Plaintiff owns the Account and stands in the place of the original creditor and is
9 entitled to collect on the Account as if it were the original creditor. Additionally, as owner of the
10 Account, Plaintiff can testify to ownership of the Account and the fact that the debt remains unpaid by
11 Defendant.

12 6. Upon my review of the Plaintiff's records as they pertain to Defendant's account, there
13 were previous transactions between the original creditor and Defendant. Defendant agreed to repay the
14 amount due to the original creditor, and there was a valid assignment of the account from the original
15 creditor to Plaintiff. By using the Account, Defendant expressly agreed or impliedly promised to repay
16 Plaintiff.

17 7. Prior to the commencement of this action, as part of our usual course of business, and
18 pursuant to Code of Civil Procedure § 1033(b)(2), Defendant was notified in writing of the intended legal
19 action and that any judgment entered against the Defendant would include attorney's fees and collections
20 costs. A true and correct copy of the letter sent to Defendant is attached hereto as "Exhibit A".

21 8. When Defendant failed to pay the balance due, Plaintiff filed and served the Complaint in
22 this action. Defendant was served with the complaint on January 27, 2024. A proof of service was filed
23 with the court.

24 9. Upon my review of the Plaintiff's records as they pertain to this case, I further certify
25 that no papers or any responsive pleadings have been served on and received by Plaintiff by the
26 party(s) in default, therefore the allegations of the complaint are deemed admitted by law.

27 10. Plaintiff seeks entry of Defendant's default and judgment as set forth in the Request for
28 Entry of Default Judgment, Judicial Council for 982 (a)(6) filed with this Declaration.

11. Filed as part of this default judgment packet is an affidavit pursuant to Code of Civil Procedure section 585. The affidavit and its attached exhibits establish the account and the obligation.

COSTS AND FEES

12. Pursuant to Code of Civil Procedure § 1033(b)(2), Plaintiff is entitled to recover the actual costs of a filing fee and the actual costs of service of process.

13. It is the normal business and procedure of Plaintiff to microfilm, image or store as electronic media all documents provided by Plaintiff's predecessor-in-interest. The records are microfilmed, imaged or stored as electronic media to facilitate storage and are maintained as part of Plaintiff's regular business practice and procedure. Therefore, Plaintiff requests that all copies of documents produced as part of this default judgment packet, including any affidavits and any documents attached thereto, be accepted in lieu of the original pursuant to Evidence Code § 1550.

I declare under penalty of perjury under the laws of California that the foregoing is true and correct.

Date March 01, 2024

MIDLAND CREDIT MANAGEMENT, INC.

By:

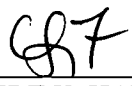

☐ ROBERT K. HANNA
☐ JUNQIAO XIAO
☐ HYU JIN JULIA JUNG
☐ MICHAEL D. KAHN
☒ LAMONT FREEMAN

EXHIBIT A

MIDLAND CREDIT MANAGEMENT
LEGAL COLLECTIONS DEPARTMENT

MidlandCredit.com
(877)-898-5001

Victoria Reyna
P1 T3 9055 W Avenue F
001 Lancaster, CA 93536-9318



11/24/2023

REF: CREDIT ONE BANK, N.A.
Original Account Number: XXXXXXXXXXXX1344

Dear Victoria Reyna,

As attorneys with Midland Credit Management, Inc. legal department, we are contacting you regarding the collection of the above balance. Your CREDIT ONE BANK, N.A. Account, owned by Midland Credit Management, Inc., has now been transferred to our legal collections department due to non-payment. We are currently reviewing documentation (including the attached documents) in preparation for filing a lawsuit against you.

Demand is hereby made upon you for the above payment IN FULL—this is the amount due on your original obligation when transferred to our department. Please send payment **Made Payable to Midland Credit Management, Inc.** by 12/04/2023. You may also make a payment online at MidlandCredit.com.

If we do not receive payment IN FULL by 12/04/2023, we intend to file a lawsuit against you, seeking entry of judgment for your account's outstanding balance as well as any incurred and recoverable court costs. We intend to continue our collection efforts through various post-judgment remedies available under your state's laws if a judgment is obtained against you. If you are unable to pay in full by 12/04/2023 please contact our office at (877)-898-5001 to discuss affordable repayment options.

Your prompt attention is necessary to avoid a lawsuit. Please call (877)-898-5001 no later than 12/04/2023. You may also make a payment online at MidlandCredit.com.

Sincerely,
Attorneys for Midland Credit Management, Inc.

P.S. Attached are copies of some of the documents we received from the original creditor regarding this account.

00007

Visit Us Online
MidlandCredit.com
Call (877)-898-5001
Hours of Operation:
M – Fri: 8:00am – 7:30pm EST
Sat: Closed
Sun: Closed

P.O. Box 2121 Warren, MI 48090

PLEASE SEE REVERSE SIDE FOR IMPORTANT DISCLOSURE INFORMATION

Please tear off and return lower portion with payment in the envelope provided

PAYMENT CERTIFICATE

Internal Legal Account Number: 23-210304
Original Account Number: XXXXXXXXXXXX1344
Current Balance: \$2,566.72
Amount Enclosed: \$ _____

Victoria Reyna
9055 W Avenue F
Lancaster, CA 93536-9318

Payment Options:
1) Pay by phone: (877)-898-5001
2) Mail in this certificate with your payment and make check payable to: Midland Credit Management, Inc.



0102600000007
0000 0000

P.O. Box 2121 Warren, MI 48090

PRE_002

IMPORTANT DISCLOSURE INFORMATION:

Please understand this is a communication from a debt collector. This is an attempt to collect a debt.
Any information obtained will be used for that purpose.

Calls to and/or from this company may be monitored or recorded.

MAIL PAYMENTS TO: P.O. Box 2121 Warren, MI 48090

MAIL CORRESPONDENCE TO: P.O. Box 2121, Warren, MI 48090

We are required under state law to notify consumers of the following additional rights. This list does not contain a complete list of the rights consumers have under applicable law:

IF YOU LIVE IN CALIFORNIA, THIS APPLIES TO YOU:

California Code of Civil Procedure §1033(b)(2) requires us to notify you that in the event of legal proceedings, such legal proceedings could result in a judgment against you that could include court costs and necessary disbursements under applicable law, if Midland Credit Management, Inc. is found to be legally entitled to the same.

California license number pending.

PRE_002

CREDIT ONE BANK CREDIT CARD STATEMENT
 Account Number 1344
 January 22, 2023 to February 21, 2023

SUMMARY OF ACCOUNT ACTIVITY	
Previous Balance	\$2,468.75
Payments	\$0.00
Other Credits	\$0.00
Purchases	\$0.00
Balance Transfers	\$0.00
Cash Advances	\$0.00
Fees Charged	\$47.25
Interest Charged	\$50.72
New Balance	\$2,566.72
Credit Limit	\$2,000.00
Available Credit	\$0.00
Statement Closing Date	02/21/23
Days in Billing Cycle	31

PAYMENT INFORMATION	
New Balance	\$2,566.72
Past Due Amount	\$768.00
Amount Due This Period	\$1,837.72
Minimum Payment Due	\$2,566.72
Payment Due Date	03/17/23
Late Payment Warning: If we do not receive your minimum payment by the date listed above, you may have to pay a late fee up to \$39.	
Minimum Payment Warning: If you make only the minimum payment each period, you will pay more in interest and it will take you longer to pay off your balance.	
For example:	
If you make no additional charges using this card and each month you pay:	You will pay off the balance shown on the statement in about: 1 month(s)
Only the minimum payment	And you will end up paying an estimated total of: \$2,567.00
If you would like a location for credit counseling services, call 1-866-515-5720. Or you may visit www.justice.gov/ust-list-credit-counseling-agencies-approved-pursuant-11-usc-111 .	

QUESTIONS?
 Call Customer Service or Report a Lost or Stolen Credit Card
 Outside the U.S. Call
 1-877-825-3242
 1-702-405-2042
 Please send billing inquiries and correspondence to:
 P.O. Box 98873, Las Vegas, NV 89193-8873

TRANSACTIONS				
Reference Number	Trans Date	Post Date	Description of Transaction or Credit	Amount
Payments, Credits, and Adjustments				
Fees				
F5727001L000CYLAC	02/21	02/21	ANNUAL FEE 03/23 THROUGH 03/23	8.25
	02/21	02/21	LATE FEE	39.00
			TOTAL FEES FOR THIS PERIOD	47.25
Interest Charged				
	02/21	02/21	Interest Charge on Purchases	50.72
	02/21	02/21	Interest Charge on Cash Advances	0.00
			TOTAL INTEREST FOR THIS PERIOD	50.72
2023 Totals Year-to-Date				
Total fees charged in 2023				\$94.50
Total interest charged in 2023				\$100.33

Your account is currently closed.

INTEREST CHARGE CALCULATION			
Your Annual Percentage Rate (APR) is the annual interest rate on your account.			
Type of Balance	Annual Percentage Rate (APR)	Balance Subject to Interest Rate	Interest Charge
Purchases	28.15%(v)	\$2,162.06	\$50.72
Cash Advances	28.15%(v)	\$0.00	\$0.00
STANDARD BALANCE TRANSFER	28.15%(v)	\$0.00	\$0.00
(v) = Variable Rate			

5385 JBH 001 7 21 230221 0 C X PAGE 1 of 1 2 0 5727 9620 M202 01GR5385

Please return this portion with your payment, and write your account number on your check, made payable to CREDIT ONE BANK.

CreditOne
 B A N K
 P.O. BOX 98873
 LAS VEGAS, NV 89193-8873

For address, telephone and email changes, please complete the reverse side. Or, update your contact information online at www.CreditOneBank.com.

PAY YOUR BILL ONLINE at CreditOneBank.com

Account Number: 1344
 New Balance: \$2,566.72
 Minimum Payment Due: \$2,566.72
 Payment Due Date: 03/17/23

AMOUNT ENCLOSED: \$

CREDIT ONE BANK
 PO BOX 80500
 CITY OF INDUSTRY CA 91716-0500



VICTORIA REYNA
 9055 W AVENUE F
 LANCASTER CA 93536-9318



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